

Court No. - 37

Case :- WRIT - C No. - 15488 of 2012

Petitioner :- Budhram

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Brijendra Mani Shukla

Respondent Counsel :- C.S.C., Anubhav Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Pankaj Naqvi, J.

We have heard Shri B.M. Shukla, learned counsel appearing for the petitioner. Shri Anubhav Shukla appears for the U.P. Power Corporation.

The petitioner has an electricity connection for 7.5 HP load for running a tubewell. By this writ petition, he is challenging the validity of the recovery proceedings to recover Rs.1, 90, 025/- from him, as electricity dues under the Uttar Pradesh Government Electricity Undertakings (Recovery of Dues) Act, 1958 on the ground that certain payment made by him has not been adjusted.

The petitioner has annexed two receipts of Rs. 5000/- each, dated 26.4.2008 and 29.4.2008 respectively. The rest of the payments made by him and recorded in his past bills relate to the years from 1992 to 1995 and thereafter for the years 2001 and 2006.

The petitioner has not annexed the current bills in pursuance to which the recovery has been initiated against him, to demonstrate the period, for which the electricity dues are being recovered. He has admittedly consumed the electricity, and is required to pay the dues against him.

Shri Anubhav Shukla, learned counsel appearing for UP Power Corporation states that if the petitioner gives the details of the bills, which have been paid by him for the period for which the demand has been raised, the department will, after verifying the amount, correct the bill in accordance with the provisions of the UP Electricity Supply Code, 2005.

The writ petition is accordingly **disposed of** with directions, that if the petitioner produces the receipts of payment, within a week, the department will adjust the payments and correct the bills accordingly.

Order Date :- 29.3.2012

RKP